

STATE OF NEW YORK

6301--A

2025-2026 Regular Sessions

IN ASSEMBLY

March 3, 2025

Introduced by M. of A. OTIS, CONRAD -- read once and referred to the Committee on Science and Technology -- recommitted to the Committee on Science and Technology in accordance with Assembly Rule 3, sec. 2 -- committee discharged, bill amended, ordered reprinted as amended and recommitted to said committee

AN ACT to amend the state technology law, in relation to enacting the "critical infrastructure standards and procedures act"

The People of the State of New York, represented in Senate and Assembly, do enact as follows:

Section 1. The state technology law is amended by adding a new article 6 to read as follows:

ARTICLE 6

CRITICAL INFRASTRUCTURE STANDARDS AND PROCEDURES ACT

Section 601. Short title.

602. Definitions.

603. Compliance with cybersecurity standards for critical infrastructure.

604. Procurement, construction, reconstruction, alteration, design and commissioning of critical infrastructure or automation control systems or automation control system components.

605. Operations and maintenance of critical infrastructure.

§ 601. Short title. This article shall be known and may be cited as the "critical infrastructure standards and procedures (CRISP) act".

§ 602. Definitions. The following terms shall have the following meanings:

1. Critical infrastructure shall include, but shall not be limited to:

(a) public transportation;

(b) water and wastewater treatment facilities;

EXPLANATION--Matter in italics (underscored) is new; matter in brackets [-] is old law to be omitted.

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1 (c) public utilities and services subject to the jurisdiction, super-
2 vision, powers and duties of the public service commission and the
3 department of public service;

4 (d) public buildings, including those operated by the state university
5 of New York;

6 (e) hospitals and public health facilities regulated pursuant to arti-
7 cle twenty-eight of the public health law; and

8 (f) facilities created or existing under the public authorities law.

9 2. Automation and control system shall include personnel, hardware,
10 software and policies involved in the operation of the critical infras-
11 tructure that may affect or influence its safe, secure and reliable
12 operation.

13 3. Automation and control system components shall mean control systems
14 and any complementary hardware and software components that have been
15 installed and configured to operate in an automation and control system.
16 Such systems shall include, but shall not be limited to:

17 (a) control systems, whether physically separate or integrated,
18 including distributed control systems, programmable logic controllers,
19 remote terminal units, intelligent electronic devices, supervisory
20 control and data acquisition, networked electronic sensing and control,
21 and monitoring and diagnostic systems;

22 (b) associated information systems, such as advanced or multivariable
23 control, online optimizers, dedicated equipment monitors, graphical
24 interfaces, process historians, manufacturing execution systems and
25 plant information management systems;

26 (c) associated internal, human, network, or machine interfaces used to
27 provide control, safety, and manufacturing operations functionality to
28 continuous, batch, discrete; and

29 (d) other processes as defined by the international society of auto-
30 mation including the ISA/IEC 62443 series of standards, as referenced by
31 the national institute of standards and technology (NIST).

32 4. Asset owner shall mean the public or private owner or entity
33 accountable and responsible for operation of the critical infrastructure
34 and for the automation and control system. The asset owner shall be the
35 operator of the automation and control system and of such equipment
36 under control.

37 5. Operational technology shall mean the hardware and software that
38 detects or causes a change in the critical infrastructure through the
39 direct monitoring or control of physical devices, systems, processes and
40 events.

41 § 603. Compliance with cybersecurity standards for critical infras-
42 tructure. The office, in consultation with the division of homeland
43 security and emergency services shall make a determination of critical
44 infrastructure, including whose assets, systems, and networks, whether
45 physical or virtual, are considered vital and vulnerable to cybersecuri-
46 ty attacks.

47 § 604. Procurement, construction, reconstruction, alteration, design
48 and commissioning of critical infrastructure or automation control
49 systems or automation control system components. On or after July first,
50 two thousand twenty-nine, the asset owner, when procuring automation and
51 control system components, as defined in subdivision three of section
52 six hundred two of this article, services or solutions, or when
53 contracting for facility upgrades or the construction of critical
54 infrastructure facilities, shall require such components, services, and
55 solutions to conform to the ISA/IEC 62443 series of standards. All
56 contracts awarded for construction, reconstruction, alteration, design

1 and commissioning of facilities identified as critical infrastructure
2 under this article shall provide that such installed automation and
3 control components meet the following minimum standards for cybersecuri-
4 ty as defined by the ISA/IEC 62443 series of standards:

- 5 1. 2-4 requirements for IACS solutions providers;
- 6 2. 3-2 security risk assessment and systems design;
- 7 3. 3-3 system security requirements and security levels;
- 8 4. 4-1 product development requirements; and
- 9 5. 4-2 technical security requirements for IACS components.

10 § 605. Operations and maintenance of critical infrastructure. On or
11 after July first, two thousand twenty-seven, the asset owner shall be
12 responsible for ensuring that the operation and maintenance of opera-
13 tional technology, including critical infrastructure, automation control
14 systems and automation control system components conform with the
15 following ISA/IEC 62443 series of standards, including annual risk
16 assessments and shall create a mitigation plan:

- 17 1. 2-1 requirements for an IACS security management system;
- 18 2. 2-3 patch management in the IACS environment;
- 19 3. 2-4 security program requirements for service providers;
- 20 4. 3-2 security risk assessment and system design; and
- 21 5. 3-3 system security requirements and security levels.

22 § 2. This act shall take effect on the one hundred eightieth day after
23 it shall have become a law. Effective immediately, the office of infor-
24 mation technology services, the commissioner of homeland security and
25 emergency services and the superintendent of financial services may
26 promulgate rules and regulations and take other actions reasonably
27 necessary to implement this act on that date.